

Judgment Sheet
IN THE LAHORE HIGH COURT AT LAHORE
JUDICIAL DEPARTMENT

Criminal Appeal No. 1764 of 2003
State. v. Mukhtar Ahmad etc.

JUDGMENT

Date of Hearing: 14.10.2014.
Appellant by: Mr. Munir Ahmad Sial, Deputy Prosecutor General Punjab.
Respondents by: Nemo.

Aalia Neelum, J.- The State represented by the learned Law Officer by way of instant appeal filed under Section 417 Cr.P.C., has challenged the acquittal of Mukhtar Ahmad, Majid alias Majju, Razzaq, Muhammad Siddique alias Laddu, Kherat alias Khertu and Mushtaq Ahmad-respondents No.1 to 6 recorded by the learned Addl. Sessions Judge, Depalpur, District Okara vide judgment dated 29.3.2003 in case F.I.R. No.30/2000 dated 16.01.2000, offence under Sections 302, 336, 324, 460, 395, 148, 149 P.P.C., registered at Police Station Hujra Shah Muqem, District Okara.

2. Briefly, the facts narrated in the crime report are that during the night of 15/16.1.2000 at about midnight, four unknown persons while armed with 12 bore guns and one rifle, trespassed into the courtyard of the house of Muhammad Nawaz, complainant (PW-1) while six others while armed with deadly weapons remained outside Haveli of the complainant. All the accused persons started firing; Allah Ditta, 'Bhanja' of the complainant received fire which landed on right side of his neck. In the same occurrence, other family members, namely, Muhammad Nawaz-complainant, his son Muhammad Sadiq, Allah Rakha son of Allah Ditta, Irshad son of Khushi Muhammad, Safia Bibi daughter of Khushi Muhammad, Kaneez Bibi widow of Muhammad Ahmed and Mst. Rano Bibi wife of Muhammad Sadiq also received injuries due to firing of

the assailants. On hearing hue and cry, the people came there and the accused persons decamped while extending threats. During this occurrence, the accused persons also took away gun 12-bore, rifle 44-bore along with gold ornaments weighing 80 Tolas and cash amount of Rs.1,10,000/-. Allah Ditta succumbed to his injuries at the spot. The police arrived there and recorded statement of the complainant Ex.PA. After investigation of the case, the case was sent for trial along with other accused persons, namely, Nazir alias Najuj, Bashira, Shera and Peeri accused (since proclaimed offender).

3. On receiving information, Muhammad Hussain, SI//SHO (PW-17) along with other police officials reached at the spot and reduced into writing statement (Exh.PA) of Muhammad Nawaz, complainant and sent the same to the Police Station through Muhammad Ameer constable for registration of formal F.I.R. (Exh.PA/1). Thereafter the Investigating Officer inspected the dead body of Allah Ditta, deceased, prepared injury statement Ex.PT/A, inquest report Exh.PU, application for postmortem Ex.PV and sent the dead body to the mortuary RHC Hujra Shah Muqem for postmortem under the escort of Amir Javed and Jahangir constables. Thereafter, the Investigating Officer (PW-17) prepared rough site plan of the place of occurrence Exh.PW and secured the bloodstained earth of the deceased from the spot vide memo Exh.PB. The Investigating Officer also took into possession from the spot, 38 empties cartridges P.1/1-38, three empties of 7-MM rifle bullets P.2/1-3 and five live bullets of 7-MM P.2-A/1-5 which were sealed into parcel vide memo Exh.PC. After postmortem of the deceased, the constable handed over to him last worn clothes of the deceased P.15 to P.18 along with a sealed phial P.19 which were taken into possession vide memo Exh.PT. On the same day, he got medically examined seven injured persons of the complainant party, namely, Muhammad Sadiq, Muhammad Nawaz, Allah Rakha, Muhammad Irshad, Rano Bibi, Kaneez Bibi and Safia Bibi through Zawar Hussain constable and after medicolegal examination of the aforesaid persons, produced before him the carbon copies of MLRs No.23/2000 to 30/2000 Exh.PL to Exh.PS respectively. Draftsman handed over him the scaled site plan (Exh.PE) and (Exh.PE/1). On 23.4.2000

accused Mukhtar Ahmed while in police custody in another case F.I.R. No.243/2000 was arrested in this case and sent to judicial lock up for identification parade. During investigation, the Investigating Officer also interrogated Majid alias Maju, Razzaq alias Zaka accused in Central Jail, Sahiwal who were already confined in some other case there. On 27.4.2000 the Investigating Officer summoned above said accused in this case and on the next day the said accused were also sent to judicial lock up in this case. On 02.5.2000 identification parade was held in the jail premises by the learned Judicial Magistrate and due to transfer, on 4.5.2000 the Investigating Officer handed over the case file to Nasir Mahmood, Inspector/SHO. On 18.5.2000 he again posted as SHO, police station Hujra Shah Muqem and received file of this case on 29.5.2000 for investigation. On 09.6.2000 he arrested accused Khairat alias Kharati who led to the recovery of 12-bore double barrel gun P.9 along with five live cartridges P.10/1-5 which were taken into possession vide recovery memo Ex.PH. He also prepared the site plan of place of recovery Exh.PH/1. Kharait alias Kharaiti accused was also got sent to the judicial lock up for identification parade. On 17.6.2000 Muhammad Siddique alias Laddu accused while in police custody led to the recovery of pistol of 30 bore P.13 along with four live bullets P.14/1-4 which were taken into possession vide memo Ex.PJ along with finger ring P.11, ear rings P.12/1-2 and prepared site plan of place of recovery Exh.PJ/1. Due to transfer of Muhammad Hussain, SI/Investigating Officer, the investigation was conducted by Agha Nasir Mehmood, Inspector/SHO (PW-19) on 05.5.2000. On 06.5.2000 he recorded supplementary statement of the complainant regarding nomination of the said accused and five others, namely, Muhammad Siddique alias Laddu, Khariat alias Khairati, Bashir alias Peeri, Shera son of Waryam and Nazir alias Rajju. On 17.5.2000 Majid alias Majoo led to the recovery of stolen property i.e. Dandi Jhumki P.4, Nath P.5 which were taken into possession vide memo Exh.PF and Investigating Officer prepared site plan of the place of recovery Exh.PF/1. On the same day, Abdul Razzaq accused led to the recovery of stolen property i.e. Ghani P.6, pair of ear rings P.7/1-2, finger ring P.8 which he took into

possession vide memo Exh.PG and prepared the site plan of place of recovery Exh.PG/1. Once again due to transfer of Investigating Officer (PW-19), the investigation was entrusted to Muhammad Azam, Inspector/SHO and on 20.10.2000 he arrested Mushtaq Ahmad accused. On 01.11.2000 during investigation said Mushtaq Ahmad accused led to the place of recovery of looted property i.e. pair of gold ear rings P.3/1-2 and the same was taken into possession vide memo Exh.PD and prepared the site plan of place of recovery Ex.PD/1. On 07.02.2000 the Investigating Officer completed the investigation. Mr. Muhammad Riaz ud Din, Judicial Magistrate, Ferozewala, District Sheikhpura (PW-18) conducted identification parade of accused persons, namely, Razzaq son of Suleman, Mukhtar son of Khan Muhammad and Majid son of Suleman. The complainant Haji Muhammad Nawaz expressed his inability to identify any of the accused, however, Kaneez Bibi (PW-2) identified Razzaq son of Suleman and Asghar Ali son of Mushtaq as accused persons. Rani Bibi (PW-3) also identified Mukhtar son of Khan Muhammad, Muhammad Yousaf son of Ghughtas, Majid son of Suleman. Muhammad Sadiq (PW-4) identified Mukhtar son of Khan Muhammad, Yousaf son of Chughta. The identification parade proceedings were consists of six pages which is Ex.PY/1-6 along with certificate Ex.PY/2. Again on 22.5.2000 the identification parade was held in Central Jail, Sahiwal and the prosecution witnesses identified the accused, namely, Muhammad Siddique son of Waryam, Babar Shah and Muhammad Akram son of Manzoor. The identification parade proceedings Ex.P.A.A/2 along with certificate Ex.P.A.A/3. On 26.6.2000 the said learned Magistrate (PW-18) conducted identification parade in the jail and the PWs identified accused Khariat alias Khairatu son of Said Muhammad. Ex.P.C.C/1-5 is the proceedings along with certificate Ex.P.C.C/2.

4. Having found the accused (respondents No.1 to 6) guilty, the Investigating Officer prepared report under Section 173 of Cr.P.C. and sent the same to the court of competent jurisdiction. The learned trial court on 22.01.2002 formally charge-sheeted the accused (respondents No.1 to 6) to which they pleaded not guilty and claimed trial.

5. The prosecution in support of the version, produced twenty (20) witnesses. Ocular account of occurrence in this case has come out from the statements of Haji Muhammad Nawaz (PW-1), Muhammad Sadiq (PW-2) and Mst. Kaniz Bibi (PW-3) whereas Dr. Muhammad Yahya, MO, (PW-9) had conducted postmortem of deceased-Allah Ditta on 16.1.2000 and observed as under:-

1. *A firearm entry wound 5 cm x 4.½ cm in front and lower part of right side of neck just close to right clatical. Corresponding mark was present.*

Opinion.

After conducting post mortem examination of the deceased Allah Ditta, the doctor has opined that cause of death in this case was hemorrhagic shock due to injury No.1 which is quite sufficient to cause death in ordinary course of nature. Death was immediate and probable time between death and post mortem was within 24 hours. Exh.PK is carbon copy of postmortem examination along with its sketch along with diagram Exh.PK/1, issued by him and bears his signatures. The statements of remaining prosecution witnesses are formal in nature.

6. On 16.1.2000 at 4.00 a.m. the doctor conducted the medicolegal examination of Muhammad Siddiq son of Haji Muhammad Nawaz, injured and found the following injuries on his body:-

- (i) Multiple firearm entry wounds in area of .8 cm x .7 cm on left cheek, each wound is measuring 0.4 cm x .4 cm.
- (ii) Multiple firearm entry wounds in area of 10 cm x .5 cm on forehead, each wound is measuring 0.4 cm x .2 cm.
- (iii) A contused swelling 6 cm x 5 cm on left eye. Massive sub-conjunctival hemorrhage present. Patient complaints of loss of vision of left eye, referred to eye specialist for expert opinion.

- (iv) Multiple firearm entry wounds in area of 8 cm x 6 cm on right side of neck each wound is measuring 0.4 cm. x .4 cm.

Injury No.1 and 4 was kept under observation. The probable duration between injury and examination was within 2 to 4 hours. The injuries were inflicted by a firearm. The injury No.3 was declared as "Itlaf-e-Salahiat-e-Uzzaf on 7.11.2000 in view of report from Registrar Eye Department, Ganga Ram Hospital, Lahore. Ex.PL is the correct carbon copy of MLC No.23/2000. Ex.PL/1 is diagrams showing the death of injuries. Ex.PL/2 is declaration report of MLC No.23.

7. On the same day, i.e. 16.1.2000 the doctor examined Muhammad Nawaz injured and found the following injuries on his body:-

- (i) A fire arm entry wound 1 cm x 0.4 cm on middle part of right ear.
- (ii) Multiple firearm entry wounds in area of 30 cm x 16 cm in front of right leg each wound measuring .4 cm x .4 cm. Corresponding mark on clothes present.
- (iii) Multiple firearm entry wound in area of 28 cm x 12 in front of left leg, each wound measuring g .4 cm x .4 cm. Corresponding mark on clothes were present.

Injury No.1 to 3 was kept under observation. The probable duration was within 2 to 4 hours. The injuries were inflicted with a firearm. Ex.PM is the correct carbon copy of MLC No.24/2000. Ex.PM/1 is the diagrams showing the seat of injuries.

8. On the same date, i.e. 16.1.2000 the doctor examined Allah Rakha and found the following injuries on his body:-

- (i) Two fire arm entry wound in the area of 5 cm x 3 cm on left side of head, each wound is measuring .4 cm x .4 cm.
- (ii) Multiple firearm entry wound in the area of 45 cm x 12 cm in front of right leg and foot. Each wound was measuring 0.4 cm x 0.4 cm. Corresponding mark on clothes present.

Injuries No.1 and 2 were kept under observations. The probable duration of injury was within 2 to 4 hours. The injuries were inflicted by a firearm. Ex.PN is the correct carbon copy of MLC No.25/2000. Ex.PN/1 is diagrams showing the seat of injuries. Ex.PN/2 is the declaration report.

9. On the same date, i.e. 16.1.2000 the doctor examined Muhammad Irshad and found the following injuries on his body:-

- (i) Multiple firearm entry wounds in area of 15 cm x 8 cm on back of left thigh, each wound measuring .4 cm x .4 cm. Corresponding mark on clothes present.
- (ii) A fire arm entry wound .4 cm x .4 cm on back and upper part of right leg. Corresponding mark on clothes present.

Injury No.1 and 2 was kept under observation. The probable duration of injury was within 2 to 4 hours. The injuries were inflicted by a firearm. Ex.PP is the correct carbon copy of MLC No.26. Ex.PP/1 is diagrams showing the location of injuries. Ex.PP is declaration report.

10. On the same date, i.e. 16.1.2000 the doctor examined Mst. Rannu Bibi and found the following injuries on her body:-

- (i) A contused swelling 6 cm x 5 cm on right eye. Massive sub-conjunctival hemorrhage present. Patient complaints of loss of vision. Referred to Eye Surgeon DHQ, Okara.
- (ii) A fire arm entry wound .4 cm x 4 cm on right cheek. Injury No.1 and 2 were kept under observation.

The probable duration of injury was within 2 to 4 hours. The injuries were inflicted by blunt. Ex.PQ is the correct carbon copy of MLC No.27. Injury No.1 was declared as "Itlaf-e-Salahait-Uzzwe" on 7.11.2000 in view of report from Registrar Eye Department for Ganga Ram Hospital, Lahore. Ex.PQ/1 is diagrams showing the location of injuries.

11. On the same date, i.e. 16.1.2000 the doctor conducted the medical examination of Mst. Kaniz Bibi and found the following injuries on her body:-

- (i) An abrasion 3 cm x 2 cm on chin.
- (ii) Multiple abrasion in area of 12 cm x 8 cm on back of right hand.
- (iii) Multiple abrasion in area of 18 cm x 14 cm on lower part of left fore arm.
- (iv) Multiple contusion on back and both sides of chest.

Injury No.1, 2, 3 and 4 'Ghair Jaifa Damiyah, the probable duration of injuries was within 2 to 4 hours. The injuries were inflicted by a blunt weapon. Ex.PR is the correct carbon copy of MLC No.28/2000. Ex.PR/1 is diagrams showing the seat of injuries.

12. On the same date, i.e. 16.1.2000 the doctor examined Mst.Safia Bibi and found the following injuries on her body:-

- (i) A lacerated wound 10 cm x 4 cm x muscle deep on back from a distance more than 6 feet.

Injury No.1 was kept under observation which was declared as Ghair Jaifa Hashma on 27.1.2000. The probable duration of injury was within 2 to 4 hours. The injuries were inflicted by blunt weapon. Ex.PS is the correct carbon copy of MLC No.29. Ex.PS/1 is diagrams showing the seat of injuries. Ex.PS/2 is the declaration report.

13. On 19.3.2003, the learned Additional Public Prosecutor closed evidence of the prosecution while tendering report of the Chemical Examiner as (Exh.P.D.D), report of Serologist (Exh.P.E.E) and report of Forensic Science Laboratory (Exh.P.F.F).

14. The accused (respondents No.1 to 6) were also examined in terms of Section 342 of Cr.P.C., wherein they opted not to appear as their own witnesses in disproof of the allegations levelled against them in the prosecution version,

nor they opted to lead evidence in their defence. In response to the question why this case against them and why the PWs deposed against them, Mukhtar Ahmad -accused (respondent No.1) made the following deposition:-

“The PWs of this case are close relatives inter-se and they have gave false statements in the court on the asking and under the pressure of the Police as the police wanted to show their efficiency to arrest the persons in this case in order to please their high-ups. The PWs have made dishonest improvements over their previous statements but all the PWs have failed to connect me with the alleged occurrence/offence. This case has been made against me by the police just to show their efficiency and to please the high officers of the police.”

15. Similarly, in response to the question why this case against him and why the PWs deposed against him, Mushtaq Ahmad son of Muhammad Yaqoob-accused (respondent No.6) made the following deposition:-

“The case was not registered against me. Only supplementary statement was recorded on the inducement of Abbas Haider and Walayat Shah against me. I was challaned by the I.O. under section 395/109 PPC without any justification as no evidence regarding the factum of abetment was available to the prosecution during investigation. The PWs are relative of the complainant party and due to relationship they have deposed against me with the connivance with the I.O. to strengthen the prosecution case.”

16. Likewise, Majid alias Majju (respondent No.2), Razzaq (respondent No.3), Muhammad Siddique alias Laddu (respondent No.4) and Kherat alias Kheratu (respondent No.5) have relied upon the statement given by Mukhtar Ahmad, accused (respondent No.1).

17. The learned trial court after evaluating the evidence available on record and in the light of arguments advanced from both sides, found at the prosecution has miserably failed to prove the allegations levelled against the accused

(respondents No.1 to 6), resulting into acquittal of the accused (respondent No.1 to 6).

18. The appeal pertains to the year 2003 and the same was admitted to regular hearing on 07.7.2004 but no one is in attendance on behalf of respondents No.1 to 6 despite of issuance of bailable warrants of arrest. As this Court has gone through the docket as per acknowledgment for disposal of the old cases, therefore, the case cannot be left open, as such the arguments advanced by the learned Law Officer, present in Court, have been heard and perused the available record minutely annexed with this appeal.

19. The occurrence in the instant case had taken place on 16.01.2000 at 01.00 a.m. (night), on receiving information about the incident, Muhammad Hussain SI (PW-17) along with another police officials reached at the spot at 03.00 a.m. and got recorded statement (Ex.PA) of the complainant-Haji Muhammad Nawaz (PW-1) and sent the same to the police station Hujra Shah Muqem through Muhammad Ameer, constable for formal registration of First Information Report, while inter-se distance between the place of occurrence and police station is 3-kilo-meters. However, neither plausible explanation has been rendered by the prosecution for delay in reporting the matter to the police nor name of informer was disclosed by the prosecution. Further that, in the first instance, the FIR had been lodged against ten (10) unknown accused persons. It is also noticed that the incident had taken place inside the house of the complainant at 12.00 a.m. (midnight) and no source of light was mentioned in the statement (Exh.PA) of the complaint. It is noted by us that First Information Report is not available on the record. As per statement (Exh.PA) four assailants were inside the house whereas six assailants were outside the house of the complainant, who were making firing and during the incident, 'Bhanja' of the complainant, namely, Allah Ditta arrived in the courtyard whereas an unknown accused fired at him which landed on right side of his neck and chest. He fell down after sustaining injuries upon which other family members also come to nearby Allah Ditta. Due to firing of the assailants, the complainant (PW-1),

complainant's son Muhammad Sadiq (PW-2), Allah Rakha son of Allah Ditta (not produced), Irshad son of Khushi Muhammad (not produced), Safia Bibi daughter of Khushi Muhammad (not produced), Kaneez Bibi widow of Muhammad Ahmad (PW-3) and Mst. Rano Bibi wife of Muhammad Sadiq (not produced) received injuries during the incident. The assailants also robbed away gun 12-bore of Muhammad Ahmad, rifle 44-bore of Allah Ditta, gold ornaments weighing 80 Tolas and cash amount of Rs.1,10,000/- and thereafter while extending threats decamped from the spot. The complainant (PW-1) had not nominated anyone in his statement (Exh.PA). Thereafter, on 20.01.2000 the complainant through his supplementary statement (Exh.DA) nominated Noor Ahmed and Muhammad Rafique alias Papu. Haji Muhammad Nawaz (PW-1) deposed during cross-examination that:-

“My supplementary statement Exh.DA was not recorded by the police during investigation of this case after 4 days of the occurrence. It is incorrect that I am suppressing this fact intentionally and in fact my supplementary statement was recorded by the SI/SHO, Police Station Hujra Shah Muqem on 20.01.2000. I had not stated in the Exh.DA that Noor Ahmed son of Allkah Ditta resident of Mauza Lalay-Wala and Muhammad Raffique alias Pappu son of Khushi Muhammad both Dogar by caste, resident of Police Station Saddar Pattoki along with some unknown persons had murdered Allah Ditta and injured other PWs on the basis of enmity.”

Thereafter on 06.5.2000 the complainant (PW-1) appeared before Agha Nasir Mehmood Inspector/SHO (PW-19) and got recorded his another supplementary statement. Agha Nasir Mehmood, Inspector/SHO (PW-19) deposed as under:-

“On 06.5.2000 the complainant of this case approached to me and got recorded his supplementary statement before me regarding the nomination of the said accused and five others, namely, Muhammad Siddique alias Laddu, Khairat alias Khairat, Bashir alias Peeri, Shera son of Waryam and Nazir alias Rajju.”

20. In the background of the above said facts, three identification parades were held in the jail and the witnesses were asked to identify the culprits from the group of persons in which suspects as well as other persons were mixed. The details of identification parades conducted by Muhammad Riaz-ud-Din, Judicial Magistrate 9PW-18) at Central Jail, Sahiwal are as under:-

- (i) *On 02.5.2000 accused Razzaq, Mukhtar and Majid were put to identification parade. The complainant (PW-1) had not identified any accused, Mst. Kaneez Bibi (PW-3) identified Razzaq (respondent No.3) and Asghar Ali as accused. Mst. Rani Bibi (not produced) identified Mukhtar accused. Muhammad Sadiq (PW-2) identified Mukhtar (respondent No.1) and Yousaf accused. The proceedings of identification were recorded by PW-18 are Exh.P4.*
- (ii) *On 22.5.2000, learned Judicial Magistrate (PW-18) conducted identification parade. Prosecution witnesses Muhammad Nawaz (PW-1), Muhammad Sadiq (PW-2), Mst. Kaneez Bibi (PW-3) and Mst. Rano Bibi (not produced) identified accused Muhammad Siddique (respondent No.4). The proceedings of identification parade recorded by PW-18 are as Ex.PAA.*
- (iii) *On 26.6.2000, learned Judicial Magistrate (PW-18) conducted identification parade in Central Jail, Sahiwal. During the proceedings, Haji Muhammad Nawaz (PW-1) and Mst. Kaneez Bibi (PW-3) identified the accused Kherat alias Kheratu (respondent No.5).*

In the above proceedings, Mukhtar Ahmad (respondent No.1), Razzaq (respondent No.3), Muhammad Siddique (respondent No.4) and Kherat alias Kheratu (respondent No.5) were allegedly identified by the prosecution witnesses. First of all we will consider the veracity of identification parade of Mukhtar Ahmad (respondent No.1) and Razzaq (respondent no.3), Investigating Officer Muhammad Hussain, SI (PW-17) deposed that:-

“On 23.4.2000 accused Mukhtar Ahmed while in police custody in another case FIR No.243/2000, was

also arrested in this case and sent to judicial lock up for identification parade. During the investigation, I also interrogated Majid alias Maju, Razzaq alias Zaku accused, present in Court, in the premises of Central Jail, Sahiwal.”

21. It is an admitted fact that the Investigating Officer prior to identification parade interrogated accused persons, namely, Mukhtar Ahmed, Majid and Razzaq who were confined in Central Jail, Sahiwal on 23.4.2000. Mukhtar Ahmed was summoned in this case on 27.4.2000 and on next day said accused were sent to the judicial lock up in this case. On 02.5.2000 identification parade was conducted with delay of six days after arrest of the accused. The above named accused remained in the police station before identification parade.

22. Muhammad Siddique (respondent No.4) raised objection before identification parade that on 20.5.2000 he was informed by the Jail authorities that some are come to see him at meeting place on which he went there but no one known to him was present there except two or three unknown persons who asked about name and other particulars from him. It is also noticed that prosecution witnesses were produced by Karam Ellahi, SI as reflected from Exh.PAA. Apart from this the application for identification parade (Exh.P2) reveals that same was dated 17.5.2000 wherein it is mentioned that accused (respondent No.4-Siddique) was confined in judicial lock up for 14 days in the instant case and he had to be produced in the court on 31.5.2000 and request was made for fixation of date for identification parade.

23. The Superintendent, Central Jail, Sahiwal was directed to make arrangements for conducting identification parade on 17.5.2000 which shows that prior to identification parade the accused-Muhammad Siddique was under arrest in the instant case.

24. Another circumstance which creates doubt in identification parade is that the complainant (PW-1) nominated Muhammad Siddique and Kherat alias Kheratu on 06.5.2000, prior to proceedings of identification parade.

25. The prosecution case entirely depends upon identification parade and recoveries effected from the accused-respondents No.2 and 6. In such like cases proceedings of identification parade have to be seen with care and caution. The complainant (PW-1) and alleged eye witnesses had not mentioned the description, ages and complexion of the accused persons who took part in the incident and were present there. It is held by the Hon'ble Supreme Court of Pakistan in the case of **Sabir Ali alias FAUJI v. The State** (2011 SCMR 563) that:-

“-----Appraisal of evidence---Complainant had neither named the accused nor given his descriptive features in the F.I/R.----Evidence of identification parade was of no value due to the inherent defect that the witnesses had not described the role of accused in the occurrence while identifying him.-----”

“----Identification parade----Evidentiary value---Failure on the part of witnesses to describe the role of accused at the time of identification parade is an inherent defect, which renders the identification parade valueless and unreliable.----Identification test is of no value if description of accused is not given in the F.I.R.”

As far as recoveries of the alleged robbed articles from respondents No.2 and 6 are highly doubtful. Muhammad Hussain, SI (PW-17) deposed that “the detail of 80 Tolas gold ornaments allegedly taken away by the culprits was also not given by the complainant in his statement Ex.PA”.

26. Muhammad Azam, Inspector/SHO (PW-20) during his deposition admitted it correctly that “I have not recorded the statement of any goldsmith who prepared the above said ornaments allegedly recovered from Mushtaq accused. No receipt of gold ornaments was produced by the complainant in proof of preparation of ornaments from any goldsmith”.

Whereas Ali Sher (PW-15) deposed that:-

“The golden ornaments P-3 to P-8 were presented before me—placed in a handkerchief—and are not

sealed in any parcel, and Muhammad Nawaz himself has brought the same today in the court.”

Ali Sher (PW-15) also admitted that *“There are no specific marks/seals of mine on these ornaments.”*

27. Haji Muhammad Nawaz (PW-1) admitted during his deposition that he knows Mushtaq (respondent No.6) since last two years prior to this occurrence. More over, if Mushtaq (respondent No.6) was one of the participator of the occurrence, he must have been identified by the complainant and prosecution witnesses. The alleged recovered robbed articles were not sealed in any parcel as revealed from recovery memo Ex.PF and Ex.PG and recoveries were effected from the house of Sultan and he was not interrogated by the Investigating Officer. Keeping in view the fact that recovered gold ornaments P-3 to P-8 were not kept in sealed parcel and same were produced before the court by the complainant (PW-1) weakens the case of prosecution. As far as recoveries of gun 12 bore (P-9) and pistol 30 bore (P-13) from Kherat alias Kheratu and Siddique alias Laddu (respondents No.4 and 5) respectively are of no concern as no crime empty was secured from the place of occurrence.

28. There is another factor which creates doubt in the prosecution is that the complainant (PW-1) introduced entirely different story while appearing before the court. The complainant's statement (Exh.PA), supplementary statement (Exh.DA), supplementary statement recorded by PW-17 and deposition before court are all together different and with variation of time the complainant changed his stance, which makes prosecution story highly doubtful.

29. After re-appraisal of evidence we are of considered opinion that grounds taken by the learned trial court for acquittal of respondents No.1 to 6 do not find any illegality in the impugned judgment. Even otherwise, it is settled principle of law that an appeal against acquittal has distinctive features and the approach to deal with the appeal against conviction is distinguishable from the appeal against conviction because presumption of double innocence is attached in the later case. The order of acquittal can only be interfered with, if it is found on its

face to be capricious, perverse or arbitrary. The above said circumstances persuaded us to hold that acquittal recorded by the learned trial court in favour of respondents No.1 to 6 is based on sound reasoning, so in the given circumstances, we do not find any infirmity or illegality in the acquittal order of the learned trial court. The Hon'ble Supreme Court of Pakistan held that in such circumstances acquittal earned by an accused should not be disturbed. Reliance is placed on the case reported as **Jehangir v. Aminullah and others** (2010 SCMR 491) wherein it has been observed that:-

“----Order of acquittal would only warrant interference, if the same was absurd, baseless, perverse, arbitrary or capricious---Conclusion of acquittal drawn by the Courts below was strictly in accordance with law, settled norms of justice and well entrenched principles qua appreciation of evidence---impugned judgment suffering from no error of law, did not call for any interference---

30. For what has been discussed above, the judgment impugned did not suffer from any error of law and the conclusion drawn by the learned trial court is in accordance with law and accordingly no interference is called for. This appeal being devoid of any merits is hereby **dismissed**.

(Mazhar Iqbal Sidhu)
Judge

(Aalia Neelum)
Judge

Approved for reporting.